25STCP04361 25STCP04361

County: los-angeles

Division: Civil Law and Motion

Department: 836

Hearing date: 2026-06-30

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Case Number: 25STCP04361 Hearing Date: June 30, 2026 Dept: 836

MEASURE LC DEFENSE, et al.

Petitioners,

Case No.

25STCP04361

vs.

CITY OF SANTA MONICA, et al.

Respondents.

[TENTATIVE] RULING ON DEMURRER TO FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE

Dept. 836 (Hon. Curtis A. Kin)

DELUX PUBLIC CHARTER LLC DBA JSX AIR,

Real Party in Interest

Real
Party in Interest Delux Public Charter, LLC dba JSX Air (“JSX”) and respondents City of Santa Monica (“City”) and Santa Monica City Council (“City Council”) jointly demur to the First Amended Verified Petition for Writ of Mandate and Complaint for Injunctive and Declaratory Relief (“FAP”), on the grounds that the claims

asserted therein are preempted by federal law and that the FAP fails to allege sufficient facts to constitute a cause of action. (See Notice of Demurrer at 1, 3.) For the reasons that follow, the Demurrer is SUSTAINED on the basis of preemption.

I. PETITIONERS' ALLEGATIONS

Since 1926, the City has owned the Santa Monica Airport ("SMO"), which is located at 3233 Donald Douglas Loop S., Santa Monica, CA 90405. (FAP ¶ 19.) On November 6, 2014, the City residents voted to adopt Measure LC, which added Section 640 to the City Charter and allowed the City Council "to regulate use of the [SMO], manage Airport leaseholds, condition leases, and permanently close all or part of [SMO] to aviation use." (FAP ¶ 20.) If the property were to be used for anything other than for "parks, public open spaces, and public recreational facilities; and the maintenance and replacement of existing cultural, arts and education uses" following closure of SMO, then Measure LC required voter approval for an alternative development. (FAP ¶ 20.)

After the passage of Measure LC, the Federal Aviation Administration ("FAA") sued the City regarding the City's authority to permanently close SMO (see RJN Ex. B), which culminated in a Settlement Agreement/Consent Decree ("Consent Decree") on January 30, 2017, allowing the City to permanently close SMO to aviation use after December 31, 2028. (FAP ¶ 21; RJN Ex. C.) Pursuant to the Consent Decree, City was permitted to shorten the runway length to 3,500 feet, which was completed in 2017. (FAP ¶ 23.) The Consent Decree also required the City to comply with certain grant assurances associated with past federal funding that the City had received for SMO, including making space at SMO available for aeronautical users who desired space. (FAP ¶¶ 21-23.)

Since then, JSX—a company that provides public charter air service operations—applied for a Commercial Operations Permit ("COP") to operate six daily departures at SMO with the objective of expanding to nine daily departures. (FAP ¶¶ 1, 24.) The FAP alleges that public charter service is regulated differently than commercial passenger service. (FAP ¶ 25.) JSX's COP application was set for a hearing before the Santa Monica Airport Commission ("Commission") on September 24, 2025. (FAP ¶ 30.) After having received a number of public comments, the Commission expressed concerns about the traffic impacts, safety, and security of JSX's operations at SMO and continued consideration of JSX's COP application for further study of "safety, vehicle traffic, security, environmental concerns, and airport closure compliance related issues." (FAP ¶¶ 31, 33.) Following this meeting, petitioner Zina Josephs sent emails to the City Manager, expressing concerns over the increased consumption of jet fuel that would increase the amount of carbon and ultrafine particles in the neighboring area of SMO, as well as safety concerns associated with the size of JSX's proposed aircraft relative to the shortened runway. (FAP ¶¶ 34-35.)

During a closed session meeting on September 30, 2025, the City Manager represented that the City had no discretion when considering the JSX COP application in light of the Consent Decree. (FAP ¶ 36.) On October 9, 2025, City posted a Notice of Exemption ("NOE") for the COP issued to JSX, stating that the COP was exempt from CEQA review based on the following exemptions: (1) for ministerial actions under 14 CCR § 15268; (2) the common sense exemption under 14 CCR 15061(b)(3); and (3) the "Class 1" categorical exemption for negligible expansion of existing facilities under 14 CCR § 15301. (FAP ¶¶ 39-40; RJN Ex. E.)

On December 2, 2025, City and JSX executed a Lease Agreement ("Lease"), allowing JSX to rent "260 square feet of office space, 1,551 feet of 'terminal space,' and 22,152 feet of ramp space." (FAP ¶ 44.) Based on the specifics of the Lease, JSX's operations would allegedly have a significant impact on the environment. (FAP ¶¶ 44-46.) The Lease further provides that it can be continued on a month-to-month basis beyond its November 2028 termination date. (FAP ¶ 47.)

The FAP alleges that the City improperly relied on the various exemptions to issue the NOE. (FAP ¶¶ 56-70.) Petitioners allege that an environmental review and analysis pursuant to CEQA of JSX's proposed public charter air service at SMO should be conducted of the environmental impacts that would be caused by JSX's operations. (FAP ¶¶ 2-3.)

Petitioners thus seek a preemptory writ of mandate "commanding Respondents to rescind the approval of the COP and the Lease for failure to comply with CEQA." (FAP Prayer for Relief ¶ 1.) In connection with their request for a writ of mandate, petitioner further request that this Court "issue a temporary restraining order, preliminary injunction, administrative stay, and permanent injunction enjoining Respondents and Real Parties from operating pursuant to the COP and the Lease until such time as Respondents have fully complied with CEQA in their review of the JSX project's environmental impacts." (FAP Prayer for Relief ¶ 1.) Petitioners also assert a second cause of action for declaratory relief, seeking a declaration that respondents improperly approved the COP in reliance on the ministerial, common sense, and Class 1 CEQA exemptions. (FAP Prayer for Relief ¶ 2.)

III. DISCUSSION

A. Evidentiary Matters

The Demurring Parties' request to take judicial notice of Exhibit A is GRANTED, pursuant to Evidence Code § 452(b). Their requests to take judicial notice of Exhibits B through G are GRANTED, pursuant to Evidence Code § 452(c) and (d).

Petitioners' request to take judicial notice of Exhibit 1 is GRANTED, pursuant to Evidence Code § 452(b).

B. Preemption

The Demurring Parties contend that the FAP is entirely preempted by the following federal laws: (1) the Federal Aviation Act, 49 U.S.C. §§ 1301, et seq. ("the Act"); (2) the Airport Noise and Capacity Act, 49 U.S.C. §§ 47521, et seq ("ANCA"); and the Airline Deregulation Act, 49 U.S.C. §§ 41713, et seq. ("ADA").

"Under the doctrine of preemption, federal law prevails over state law if Congress has expressed an intent to occupy a given field in which federal law is supreme. But even if there is no such intent, state law is preempted if it conflicts with federal law so that it is impossible to comply with both, or if the state regulations stand as an obstacle to the accomplishment of the full purposes that Congress sought to achieve. [Citation.]" (Elsworth v. Beech Aircraft Corp. (1984) 37 Cal.3d 540, 548 [citing Pacific Gas & Elec. v. Energy Resources Comm'n (1983) 461 U.S. 190, 203-205].)

1.
The
Federal Aviation Act

The Demurring Parties argue that petitioners' alleged concerns all relate to safety and operational issues concerning the use of public airports, which are matters exclusively regulated by the FAA under the Act and are accordingly preempted. (Demurrer at 18-20.) The Court finds this argument unavailing.

Because the Act does not have an express preemption clause, any preemptive effect must be implied. (Sierra Pacific Holdings, Inc. v. County of Ventura (2012) 204 Cal.App.4th 509, 514.) Federal and state cases have repeatedly found that federal control over aviation safety is "intensive and exclusive." (See Northwest Airlines, Inc. v. Minn. (1944) 322 U.S. 292, 303; City of Burbank v. Lockheed Air Terminal, Inc. (1973) 411 U.S. 624, 638-39; Montalvo v. Spirit Airlines (9th Cir. 2007) 508 F.3d 464; Booth v. Santa Barbara Biplanes Tours LLC (2008) 158 Cal.App.4th 1173, 1181.) Thus, the FAA is exclusively responsible for the safety of aircraft, as well as the use of airspace, which is partially accomplished through grants to airport sponsors. (49 U.S.C. §§ 40103(b)(1), 47104(a) & 47105(a).) Consequently, federal regulations dictate runway standards and notices (14 C.F.R. Parts 77 & 157); flight rules (14 C.F.R. § 91.101, et seq.); air traffic control instructions (14 C.F.R. § 91.101, et seq.); and airport traffic patterns (14 C.F.R. § 91.127(2)).

The FAP seeks to compel CEQA review of the environmental consequences that would result from JSX's operations at SMO. (FAP ¶¶ 1-3.) CEQA "contains a 'substantive mandate' requiring public agencies to refrain from approving projects with significant environmental effects if 'there are feasible alternatives or mitigation measures' that can substantially lessen or avoid those effects." (County of San Diego v. Grossmont–Cuyamaca Community College Dist. (2006) 141 Cal.App.4th 86, 98.) After a determination that a project would have a significant and adverse physical effect on the environment, an environmental impact report ("EIR") must be prepared, and this mechanism “force[s] informed decision making and [ ] expose[s] the decision making process to public scrutiny.” (Mountain Lion Foundation v. Fish & Game Com. (1997) 16 Cal.4th 105, 113; Planning & Conservation League v. Department of Water Resources (2000) 83 Cal.App.4th 892, 910.) “The purpose of CEQA is not to generate paper, but to compel government at all levels to make decisions with environmental consequences in mind. CEQA does not, indeed cannot, guarantee that these decisions will always be those which favor environmental considerations.” (Bozung v. Local Agency Formation Com. (1975) 13 Cal. 3d 263, 283.)

While
petitioners allege various safety concerns relating to JSX’s operations (FAP ¶¶ 25, 29, 31, 33–35, 38, 60, 65, 68–69, 77), this does not necessarily mean that CEQA review is preempted by the Act here, as the review process does not necessarily conflict with the Act or provide an obstacle to the Act’s purpose of airline safety or regulating use of airspace. Notably, courts have held that there is no exclusive control by the FAA under the Act where it comes to “state or municipal regulation of the location and environmental impacts of airports, the safety of ground maintenance facilities, and the manufacture of aircraft.” (Bethman v. City of Ukiah (1989) 216 Cal.App.3d 1395.)[1]

As
demonstrated in Citizens Opposing a Dangerous Environment v. County of Kern (2014) 228 Cal.App.4th 360 (“CODE”), CEQA review is not automatically incompatible with the Act. In CODE, an EIR was prepared in connection with a wind energy project near to a private airstrip. (CODE, 228 Cal.App.4th at 364-65.) The EIR identified that the project may pose a hazard to users of the airstrip and proposed a mitigation measure that consisted of obtaining FAA clearance for the project wind towers. (Id. at 379-80.) Because this issue concerned air safety, the appellate court reasoned that it was appropriate for the EIR to defer to the FAA, noting the FAA exercises sole discretion in regulating air safety. (Id. at 383-84.) Nowhere in that decision is there any suggestion that a proposed mitigation measure pursuant to CEQA is necessarily preempted by the Act; to the contrary, the Court interpreted the provisions of CEQA and purpose of the FAA in harmony.

With
respect to the Demurring Parties reliance on Friends of the Eel River v. North Coast Railroad Authority (2017) 3 Cal.5th 677, 714 and County of Butte v. Department of Water Resources (2022) 13 Cal.5th 612, 620, the

Court is unpersuaded. They cite these cases for the proposition that CEQA is preempted by federal law when it comes to stopping projects. (Demurrer at 19.) However, these cases do not support the proposition that the entire CEQA review process is preempted. In this vein, even if petitioners' request for an injunction pausing JSX's operations during the pendency of CEQA review is improper, the aforementioned cases do not undermine petitioners' claims that environmental review under CEQA should be conducted. (See Poizner¿v. Fremont General Corp.¿(2007) 148 Cal.App.4th 97, 119 [reasoning that demurrers "must dispose of an entire cause of action to be sustained."].)

Accordingly, because the Demurring Parties do not demonstrate that the CEQA review process conflicts with the Act or provides an obstacle to the Act's purpose of airline safety or regulating airspace, the demurrer is OVERRULED on this ground.

2. The Airport Noise Control Act

The Demurring Parties also argue that petitioner's noise and airport use claims are preempted by the ANCA. (Demurrer at 20-21.) The Court disagrees.

ANCA was enacted to carry out a noise policy at the national level because "community noise concerns have led to uncoordinated and inconsistent restrictions on aviation that could impede the national air transportation system" (49 U.S.C. § 47521(2); Friends of the East Hampton Airport, Inc. v. Town of East Hampton (2016) 841 F.3d 133, 150.) ANCA imposes procedural requirements for local noise and access restrictions on all public airport proprietors based on the classification of aircraft. (Id. at 147-49.) "Preemption of noise regulations which directly affect aircraft and flight operations is not express, but implied from the structure and purpose of federal aviation regulation." (City of Burbank v. Burbank-Glendale-Pasadena Airport Auth. (1999) 72 Cal.App.4th 366, 379

The Demurring Parties contend that CEQA review for noise pollution is improper because it would delay and restrict JSX's access to SMO. (Demurrer at 21.) In reply, the Demurring Parties further claim that petitioners seek to impose new noise and access mitigation measures and that the proposed injunction and rescission of the COP and lease would stop JSX's operations. (Reply at 12-13.) The Court finds no merit to the argument that petitioners seek to impose new noise and access mitigation measures because the FAP contains no allegations seeking such measures. As for the injunction and rescission of the COP and Lease, while such forms of relief might be viewed as access restrictions preempted by ANCA, the FAP seeks to compel the CEQA review process separate and apart from such requested relief. Indeed, the CEQA review process has been applied to examine potential noise impacts from flight operations without implicating preemption issues with respect to CEQA review. (See, e.g., Berkeley Keep Jets Over the Bay Com. v. Board of Ports Cmrs. (2001) 91 Cal.App.4th 1344, 1377-1379; see also Citizens Against Airport Pollution v. City of San Jose (2014) 227 Cal.App.4th 788, 802-806.)

Accordingly, because the ANCA does not preempt petitioners' claims, the demurrer is OVERRULED on this ground.

3. The Airline Deregulation Act

The Demurring Parties also assert that the ADA expressly preempts Petitioners' claims. (Demurrer at 21-23.) The Court agrees.

As provided by the ADA, "a State . . . may not enact or enforce a law, rule, regulation, or other provision having the force and effect of law related to a price, route, or service of an air carrier that may provide air transportation. . . ." (49 U.S.C. § 41713(b)(1).) In order for preemption under the ADA to apply, " 'two things must be true[:] (1) the claim must derive from the enactment or enforcement of state law, and (2) the claim must relate to airline rates, routes, or services, either by expressly referring to them or by having a significant economic effect upon them.'" (SwiftAir, LLC v. Southwest Airlines Co. (2022) 77 Cal.App.5th 46, 54.) The preemptive scope of the ADA is very broad. (Id. at 52-53.) As noted by the United States Supreme Court, the "key phrase" in the ADA's express exemption clause is "relat[ing] to," and "[t]he ordinary meaning of these words is a broad one—'to stand in some relation; to have bearing or concern; to pertain; refer; to bring into association with or connection with.'" (Morales v. Trans World Airlines, Inc. (1992) 504 U.S. 374, 383 [citing Black's Law Dictionary 1158 (5th ed. 1979)].) Likening the breadth of ADA preemption to the extreme breadth of preemption under ERISA (Employer Retirement Income Security Act of 1974), the Supreme Court notably cited with approval cases describing such preemption as having "broad scope" and "expansive sweep" and being "broadly worded," "deliberately expansive," and "conspicuous for its breadth." (Id. at 384 [citing cases].)

Here, it is undisputed that petitioners' claim derives from the enforcement of state law, i.e. CEQA. As for the second element, that too is met. While petitioners focus on the fact that CEQA review may not necessarily have a significant economic effect upon JSX's rates, routes or services (Opp. at 17-18), they ignore their own allegations in the FAP that make clear that their claim for CEQA review obviously relates to rates, routes, and services, which is sufficient for ADA preemption. The FAP makes numerous allegations in support of its request for CEQA review that are related to JSX's routes and services, including its flight operations, aircraft type, routes, frequency of takeoffs and landings, and passenger service. (See, e.g., FAP ¶ 1 [JSX operations as "significant departure" from SMO operations in terms of daily scheduled passenger air service, six daily flights, larger aircraft, and routes to additional cities]; ¶ 2 [need for CEQA review due to increased take offs and landings of large planes and right of environmental review for scheduled passenger service]; ¶3 [JSX operations could trigger significant environmental impacts]; ¶¶ 29, 35 [concerns about safety risks of using 30-passenger turboprop aircraft]; ¶¶ 31, 33 [concerns about JSX operations]; ¶ 38 [public environmental concerns with potential JSX operations]; ¶ 60 [failure of NOE to conduct "any analysis of the different characteristics of JSC's proposed operations"].) This is more than sufficient to come within the ADA's broad and expansive preemption of matters "related to" the route or service of an air carrier.[2]

Accordingly, because ADA preemption applies to petitioners' claims, the demurrer is SUSTAINED as to the FAP.

III. CONCLUSION

Due
to preemption by the Airline Deregulation Act, the demurrer is SUSTAINED. In light of such preemption, in the interest of judicial economy, the Court declines to address whether the FAP has otherwise sufficiently alleged a valid CEQA claim or right to declaratory relief.

Before
allowing leave to amend, the Court will hear from petitioners as to how the petition could be amended to address the defects set forth above.

[1] The Demurring Parties unconvincingly
argue that reliance on Bethman is misplaced because any statements it made regarding environmental impacts of airports are dicta because it was a wrongful death case. (Reply at 12.) While Bethman was not a CEQA case, it properly relied on and discussed preemption cases finding that certain operational decisions of a municipality acting as the proprietor of a public airport, such as Santa Monica, are not necessarily preempted by the Act. (See Bethman, 216 Cal.App.3d at 1406-08.)

[2] Even if CEQA review did not ultimately
result in any measures or changes affecting JSX's routes, services, and rates, it is sufficient that petitioner's requested CEQA review relates to JSX's flight operations and passenger service. (See
Morales, 504 U.S. at 38-85 [rejecting argument that ADA preemption is limited to state laws that actually prescribe and regulate the rates, routes, and services of an air carrier[.)